

# Castro Palao De Fide

## Operis moralis pars prima, Tract. IV De Fide, Disp. I, Punct. V, §. II (*Moral Works, Part I, Treatise IV On Faith: Whether the Roman Pontiff is an infallible rule of truth*)

by Fernando de Castro Palao, S.J. (1581–1633), first published 1631

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Note on this selection: Castro Palao is the treatment that Oviedo (1651) and Haunold (1668) cite as their dossier source (“apud Castro Palao”). Writing under Urban VIII, he holds (n. 9) that it is certain “non solum certitudine morali... sed certitudine fidei” that the man elected and received by the universal Church is true Pope — “eo enim ipso, quo ab universali Ecclesia, ut verus Pontifex recipitur, de fide est” — and this even before any definition (n. 10, “probabilius”). His grounds are that the universal Church joined to its head cannot err in this acceptance and that divine providence prevents a false claimant from ever being universally received (nn. 7, 10); acceptance even heals a defective election: “hoc ipso, quod acceptat hunc Cardinalem pro vero Pontifice, supplet omnem defectum electionis” (n. 7) — the earliest statement of the *sanatio* thesis so far documented in this collection. He distinguishes expressly (n. 11) between denying the fact — “Urbanus VIII non est verus Pontifex” would be temerarious, scandalous, and its assessor suspect of heresy and punishable as a heretic — and denying the *de-fide* NOTE, which he declines to censure at all, “since so many and such grave Doctors have defended” the contrary. His *contra-list* (n. 8: Arce, Mancio, Deza, Torres — defending the thesis publicly at Alcalá with Vázquez subscribing — Bellarmine, and Báñez) differs notably from the later stock list, and he reports Báñez as conceding the infallibility of the

*acceptance in fact while disputing only the mode of certainty. Copy caveat: the right columns of pp. 242 and 244 suffer ink set-off; line-tails were recovered from the offset ghosts, residual reconstructions are bracketed, and collation with another exemplar is recommended for a handful of loci in n. 9.*

## **Tract. IV, Disp. I, Punct. V, §. II — Whether the Roman Pontiff is an infallible rule of truth, such that he can in no way err in proposing matters of faith (pp. 241–244)**

**Summarium.** 1. In the Church an infallible rule must necessarily be established. 2. This rule is not sacred Scripture alone. 3. To Peter and his successors Christ committed the government of the Church. 4. This infallible rule resides in no one other than the Roman Pontiff. 5. Whether he can err in proposing articles of faith? The reasons for doubting are set out. 6. The conclusion is established: it is of faith that the Pontiff cannot err. 7. The contrary arguments adduced in n. 5 are answered, especially the first argument. 8. The second argument is answered, and it is examined whether it is of faith that this Pontiff in particular is true Pontiff — who deny it, and by what reasoning they argue. 9. Not only with moral certainty, but with the certainty of faith it must be held that this man is true Pontiff, after the universal Church proposes something to be believed as of faith. 10. Concerning a Pontiff received by the universal Church, before he defines any truth or decrees anything for the right ordering of the Church: I judge it more probable that it is of faith that he is true Pontiff. 11. The difference is explained between this proposition, “It is not of faith that Urban VIII is true Pontiff,” and that one, “Urban VIII is not true Pontiff.” 12. The third argument adduced in n. 5 is answered, and the diligence which the Pontiff must exercise for proposing truths of faith is explained. 13. The remaining arguments adduced in the aforesaid n. 5 are satisfied.

**1.** It must be premised that there is given in the Church some infallible rule of truth, to propose to the faithful the doctrine to be believed and to settle controversies of faith; for this belongs above all to divine providence: since there is no one who could attain the things of faith by his own ingenuity and conquer arising doubts by his own strength, some means was necessary by which all these could be overcome. Otherwise God would not have provided men sufficiently with the necessary means, and, in commanding that the things of faith be believed with certainty and without hesitation, he would be commanding the impossible — which is utterly absurd.

**2.** Secondly it must be premised that this infallible rule, which settles the questions arising about the faith, is not sacred Scripture alone: both because concerning sacred Scripture itself there is wont to be controversy — namely whether this Scripture is canonical or not; therefore by it alone this controversy cannot be decided — and because an infallible rule capable of settling arising questions must be known to all, which sacred Scripture is not, for its sense is not easily grasped by all: as is manifestly evident from the fact that sectarian heretics understand the same words now in one way, now in another.

**3.** Thirdly it must be premised that to Peter and his successors Christ committed the universal government of the Church in those words, “Thou art Peter, and upon this rock I will build my Church: and I will give thee the keys of the kingdom of heaven,” etc. — which Valentia proves lucidly and learnedly enough. Nor were these words spoken for Peter alone, but for all his successors; and all legitimately elected Roman Pontiffs succeed him, as can easily be proved from the usage of the nascent Church down to the present day, and as Sanders learnedly proves, and Torquemada, and Valentia; and although Dominic Soto thought that this successor of Peter is not by divine institution the

Roman Pontiff, but could be the bishop of Toledo, or of Seville, or of no diocese — because the words of Christ handing over the power to Peter fixed no see — yet it is most certain from divine institution, made manifest by tradition, that the successor of Peter is also the Bishop of Rome, as Valentia copiously and lucidly proves.

4. Fourthly it must be premised that this infallible rule of truth resides in no one else than the Roman Pontiff; for since it must reside in someone, no one appears who it could be except the successor of Peter, because to no one else was it said but to Peter and his successors: “And upon this rock I will build my Church”; “I will pray for thee that thy faith fail not”; likewise, “Feed my sheep.” Therefore by Christ’s authority the successor of Peter has the authority of feeding all the faithful with infallible doctrine pertaining both to faith and to morals. These things being premised —

5. The difficulty, then, is whether he can ever err in proposing articles of faith. The first reason for the difficulty is that it seems possible that someone be elected and held as supreme Pontiff by the whole Church who nevertheless truly is not; but then, if he defines some truth, he will not define infallibly. Therefore the Pontiff can err in proposing articles of faith. The consequence is legitimate; the minor seems evident, since the Pontiff infallibly proposes a truth to be believed by the faithful precisely insofar as the Holy Spirit assists him; but the assistance of the Holy Spirit is promised to Peter and to his true successor, not to a simulated and feigned one. Therefore. The major proposition — namely that someone can be elected and held as supreme Pontiff who nevertheless truly is not — is proved, first, because he can himself be a heretic, such as Anastasius is reported to have been (c. Anastasius, dist. 19) and Honorius, as related in the Sixth Council of Constantinople, act. 13 and 18; but when he falls into heresy he loses his authority by the law itself (*ipso iure*) and ceases to be vicar of Christ and successor of Peter, as Torquemada teaches (*Summa de Ecclesia*, book 2, ch. 12, to the 7th argument, and book 4, part 2, ch. 18), Driedo (*On Christian liberty*, ch. 14), Simancas (*On Catholic institutions*, ch. 29), and the canonists commonly, as appears from those whom Iacobatius adduces (book 3 *On concord*, a. 2). Secondly, there can be elected one not ordained, or not baptized, or with some other defect annulling the election — such as Martin V, elected in the Council of Constance, seems to have had, since he was not elected according to the form prescribed for the election of the Supreme Pontiff. The second reason for the difficulty is that at least it is not of faith that this elected Pontiff is the true successor of Peter, since it is not certain of faith that he is baptized, or that no substantial defect occurred in his election. Therefore it could not be certain of faith that he cannot err, because the impossibility of erring is annexed (as I said) to the true vicar of Christ, not to a simulated one. And this can be confirmed by the example of the Eucharist: for although it is of faith that in a duly consecrated host the body of Christ is present, it is nevertheless not of faith that it is present in this host in particular, because it is not of faith that the one consecrating is a baptized priest having the intention of consecrating: this is believed only with moral certainty. Therefore, likewise, granted it be true and certain of faith that the true vicar of Christ and successor of Peter cannot err in proposing matters of faith, still it does not seem certain of faith that this man in particular cannot err, because it does not seem certain of faith that he is the true Pontiff. Third: in order that the Pontiff propose some truth to be believed by the faithful, he needs counsel and inquiry and the disputation of the Doctors, which the custom of convoking Councils sufficiently confirms; but in these he can be negligent and rash. Therefore he can then err. Fourth: if the Pontiff be a heretic, he can wish to stain his Church with error and use a definition to impose this stain. Therefore his definition is not of infallible truth. And I confirm it: if, at a time when the Pontiff is infected with hidden heresy, some doubt about matters pertaining to the faith arises, what can prevent the Pontiff from then ratifying the error and proposing it to the faithful as truth to be believed? Therefore the Pontiff will be able to err. Fifth: there are many writings of the Doctors approved by the Pontiff which

nevertheless are not entirely true. Therefore the Pontiff can err. The antecedent is proved from c. Sancta Romana, dist. 15, where Pope Gelasius approves the writings of Cyprian, Chrysostom, Gregory Nazianzen, Basil, and Ambrose; and yet in these writings many things are contained which do not attain the truth. For since in those times the truth had not been elucidated in all matters, and on the other hand they were not canonical writers, they could with reason err, as Cano rightly weighs (De locis, book 7, ch. 3, concl. 2). Sixth: the Pontiff often seems to have defined several false things. For Celestine III, as related in c. Quanto, De divortiis, seems to have held that marriage is dissolved by heresy; and in c. Licet, De sponsa duorum, certain Pontiffs prior to Alexander III are noted to have judged that a ratified marriage is annulled by a second consummated one; and in c. Cum essent, De testamentis, it is decreed to be foreign to the divine law that more than two or three witnesses be required in wills, although civil laws demanding more are reputed just.

**6. Nevertheless the Catholic truth must be held: no Pontiff so reputed by the universal Church can err in proposing matters of faith.** The conclusion is received by all Catholics, with St. Thomas (2-2, q. 1, a. 10, and q. 11, a. 2 ad 3, and Contra gentes book 4, ch. 76), Waldensis (Doctrinale antiquitatum fidei, book 2, chs. 47–48), Torquemada (Summa, book 2, chs. 107–112), Cano (De locis, book 6, chs. 3–7), Gregory of Valentia, and Bañez. It is proved manifestly: for when the Pontiff proposes some truth to be believed by the faithful, the faithful themselves are bound to assent to him — otherwise the Pontiff would not have effective authority to rule the Church; but the Church cannot be obliged to give assent to a false proposition, because then the whole Church could err, which is against divine providence and against the promise of Christ, who says the Spirit of truth will remain in the Church forever. Therefore a falsehood cannot be proposed for truth by the supreme Pontiff.

**7. Nor do the contrary arguments stand against this truth. To the first I say: no one can be received by the universal Church as supreme Pontiff and vicar of Christ who cannot truly be such; because it belongs to divine providence to prevent this.** To its first proof I admit that the Pontiff can be a heretic; so, following the common opinion, testify Bañez, Cajetan (there, and in Opusculum 1 On the authority of the Pope, and in the Apologia on the same matter, ch. 13), Driedo, Cano, Soto, Córdoba (with others cited by him, book 4, q. 3), Aragón, Valentia; and from many histories it appears that several Pontiffs fell into heresy, as the above-cited Doctors relate of Victor [print: “Victor V”; recte Victor I], Marcellinus, Liberius, Honorius, Anastasius II, and others. For of Victor, Eusebius (book 5 of the Ecclesiastical History, next-to-last chapter) relates that he was a heretic. The same is established of Marcellinus, who offered incense to idols; nor can it be said that he did not abandon the faith, whence it is not established that he did not consent in his mind. Of Liberius, Jerome affirms it in his Chronicle; of Anastasius, Gratian reports it (c. Anastasius, dist. 19); of Honorius it is established from the epistle of Hadrian contained in the Eighth Synod, act. 7, and from the epistle of Agatho contained in the Sixth Synod, act. 4. And although Albert Pighius (book 4 On the ecclesiastical hierarchy, ch. 8) and Juan de Torquemada (book 2 On the Church, ch. 93) try to free these Pontiffs from this mark, affirming either that they did not interiorly consent to the heresy or that they were condemned on false information, still it is not to be doubted that they could fall into heresy — otherwise those general Councils would have rejected outright the accusation of heresy as something wholly alien to a Pontiff. **But although the Pontiff can fall into heresy, I nevertheless believe it most certain that he does not lose the pontifical authority until he is deposed by the Church;** so hold all the Doctors cited above, especially Bañez, Valentia, Cajetan, Soto, Cano, Córdoba: both because the other bishops who fall into heresy retain their episcopal dignity until they are deposed — therefore also the supreme Pontiff; and because we could be certain according to faith of no Pontiff that he is a true Pontiff, apt to propose matters of faith to the universal Church,

since we could be certified of no one that he has not secretly lost the faith. **Finally, because the pontifical authority is not founded on the special faith which the Pontiff has — as neither on grace — but is founded on this: that he has been received by the universal Church as vicar of Christ and successor of Peter; and so long as he has been thus received, he has from Christ the power and authority of ruling the Church and of feeding the sheep with the doctrine of faith and morals; and he is the true successor of Christ and of Peter, and united to him — not as to internal faith and holiness, but as to the external administration of the Church.** To the second proof I deny that one incapable can be elected [text damaged]; for on account of the special and [ordinary providence with which] God assists the Church, it must be believed that such an [election would be] prevented; and, granted that such a one were elected, that the defect would be made manifest before he was received by [the universal Church]. As for the common tale that a woman [Joan] was [Pope], it is a fable and an invention of heretics, as Onuphrius [Panvinio] rightly proves in his annotations on John VIII; in proof of which there stands the illustrious [testimony] of Leo IX, who was more than a hundred years later; for this Pontiff, in the epistle to Michael and [the] bishops [of Constantinople] (ch. 25?), found in tome 3 of the Councils, contends that the Roman Church [has been preserved] by divine protection from the ignominies which befell other Churches, and that it is to the infamy of the Church of Constantinople that a woman presided over it — which he calls an abominable crime and horrible deed. And it is more than evident that if [any] suspicion existed that this had happened to the Roman Church, he would by no means have touched this kind of argument to [censure] the Roman See; wherefore no Catholic ought to doubt that this was a mere invention of heretics. **But if someone were elected Pontiff with some defect introduced by [human] law, it is completely purged by the acceptance of the Church: for since the universal Church has authority above [human law], by the very fact that it accepts this Cardinal as true Pontiff, it supplies every defect of the election, if any intervened; and thus he remains true Pontiff.**

8. The second argument touches a grave question, namely whether it is of faith that this Pontiff in particular is truly the vicar of Christ and successor of Peter. Several Doctors **deny** it in manuscripts: Diego de Arce, professor of theology, on 2-2(?) art. 10, and there Master Mancio (q. on the authority of the Pope, ad 3); the same is presupposed there by Deza of the Society of Jesus (dub. 1 on the power of the Pontiff, before the solution of the arguments, and more clearly in the question on the canonization of saints, where he adds that it can be evident to someone that the Pontiff is not a true Pontiff, because [the minister] baptized him without intention). Bonaventura(?) holds it there as probable, though he judges the opposite more probable. Torres defended it publicly at Alcalá, and Gabriel Vázquez subscribed to it. Cardinal Bellarmine (tome 1, treatise On the authority of Councils, ch. 9), replying to the last objection, says that it is held only by natural evidence, or by human faith alone, that the Council of Nicaea [print: “Nyssenum”] and that of Ephesus were legitimately assembled, and that this suffices for what they defined to be held as of faith. But it is clear (as concerns our present purpose) that it is the same question, whether it is of faith that this Council was or is legitimate, and whether it is of faith that this Pontiff in particular is true Pope. Gregory of Valentia, to expedite this difficulty, admits as probable that one not baptized, or incapable by divine law, can be elected Pontiff, since grave Doctors admit it; **Bañez defends it absolutely (2-2, q. 1, a. 10, dub. 2, ad 2), where he affirms that this proposition — “This Pontiff in particular is true Pope” — is certain only with moral certainty, beneath which, speculatively, falsehood can lie.** They prove it, first: it is not of faith that this man elected Pontiff is baptized; therefore neither that he is true Pontiff. Secondly: he can define matters of faith and rule the universal Church without being true Pontiff; it suffices that he be considered and reputed such: for if the commonwealth confers jurisdiction on an incapable praetor when he is thought legitimate — lest grave inconveniences follow

from null acts — why shall we not say the same of an incapable Pontiff who is reputed legitimate: that Christ confers on him all jurisdiction and authority, just as if he were truly Pontiff?

**9. But I judge that it must be held — not only with moral certainty, beneath which falsehood can lie, as Bañez says, but with the certainty of faith — that the man elected Pontiff and received by the universal Church is true Pope, vicar of Christ, and successor of Peter; and I judge this must be so held not only after he has proposed some truth to the faithful to be believed and pointed out the way of salvation, but even before he has done any of these things: for by the very fact that he is received by the universal Church as true Pontiff, it is of faith that he is the vicar of Christ and successor of Peter.** And indeed, as to the former state — that when the Pontiff proposes some proposition to be believed by the faithful it is then of faith that he is true Pontiff — this is held by Valentia, cited above; by Aragón (2-2, q. 1, a. 10, treatise On Councils, principal doubt, to the 3rd principal argument), where, after proving that this Council is legitimate according to faith, he adds: “By the same reasoning it can be proved that [N.] is true Pontiff, and baptized”; the same is taught by Luis de León there, and before him by Master [?]; by Doctor Andrés Martínez [?]; and most recently by P.[?] throughout. And it can easily be proved. First: he is according to faith the true Pontiff whom Christ the Lord commands us to obey in the things pertaining to faith and morals; but Christ the Lord commands us to obey the man legitimately elected and received by the universal Church, when he decrees something pertaining to the universal Church; therefore it is of faith that the man legitimately elected and received by the universal Church is true Pontiff. The conclusion follows evidently from the premises; and the premises I prove thus. The major — that he is true Pontiff whom Christ the Lord commands us to obey — seems proved from those passages in which he conferred on Peter and his successors the power of feeding the sheep with the doctrine of faith and morals: a power he conferred on no one except the successors of Peter; therefore no one else but the successor of Peter has the power of feeding the sheep with the institutes of faith and morals. The minor is proved — namely that it is of faith that the Pontiff elected and received by the universal Church must be obeyed in matters pertaining to faith and morals — because it is of faith that the faithful are obliged to obey him whom they acknowledge as superior; but when someone is legitimately elected by the Church as Pontiff and supreme head, and is accepted, he is acknowledged as superior; therefore the faithful are bound to obey him. And I confirm it: if the elected Pontiff defines some truth of faith and proposes it to the Church to be believed, he cannot err according to faith; therefore according to faith he is true Pope — for the true Pope is he who has the authority to define infallibly and to oblige the Church of God. I confirm it secondly: he is true Pontiff who has the power of confirming the brethren lest they waver in the faith, according to Luke 22, “And thou, being once converted, confirm thy brethren”; but this Pontiff in particular, in defining some truth, confirms the brethren in the faith, since before they had doubts about it, and after the definition has been made it is no longer permitted to doubt; therefore this man is true Pontiff. — I prove it secondly: after the Council of Trent defined some truth and the Pontiff confirmed it, it is certain according to faith that this Council was legitimately assembled; therefore also, after this Pontiff has defined some truth to be believed with divine faith, it is certain with the same faith that he was legitimately elected, and therefore true Pontiff. The consequence is evident and never denied by anyone, because the reasoning is exactly the same for this Council as for this Pontiff. The antecedent is proved thus: it is of faith that a Council legitimately assembled and confirmed by the Pontiff obliges to belief, and that one not legitimately assembled does not have this force and efficacy; but the Council of Trent obliges to belief; therefore it was duly assembled. For what fallacy can there be in this reasoning, when the consequence is evident, the major certain according to faith, and the minor enjoys the same certainty? Otherwise no Council would oblige to belief in the things defined by it,

for there is no greater reason for the others than for Trent. — I prove it thirdly: every proposition of faith can be inferred from a double premise of faith, or — as others prefer — one of faith and the other known by the natural light. But this proposition, “The Pope defining cannot err,” is certain of faith; therefore it can be inferred from a double premise in the way described — which, however, can in no way be done (as will be plain to anyone who works through it) unless this proposition is of faith: “This Pontiff defining is true Pope.” For in whatever syllogism that conclusion, “The Pope defining cannot err,” is inferred, there must be assumed as minor: “This Pontiff defining is true Pope” — and since this is not known by the natural light, it must necessarily be of faith; otherwise the conclusion would not be of faith. To this argument Bañez (loc. cit.) replies that, for a conclusion of faith to be inferred, it is not required that both premises be of faith, or one of faith and the other evident; it suffices that one be of faith and the other morally certain, because then the conclusion does not follow from that morally certain proposition as from a cause, but as from a condition sine qua non, or as from something applying [the cause]. And he illustrates it by the example of a preacher: if he duly proposes to you the evangelical doctrine, you are bound to assent with divine faith to the truths proposed, although it is not certain with divine faith that this preacher is of infallible truth. But this solution is blocked with the greatest ease by an argument from an unacceptable consequence: for if it were true, it would follow that this proposition is of faith — “Under this host in particular the consecrated body of Christ is present” — for it really is inferred by evident consequence from one premise of faith, namely, “In every duly consecrated host the body of Christ is present,” and it is moreover inferred, as from a condition and as from something applying, from another premise that is morally certain, namely, “This host has been duly consecrated.” Will “under this host is the body of Christ” therefore be a proposition of faith? The same argument can be formed about these propositions: “This baptized infant receives grace,” “this man being ordained is a priest,” and other similar ones — which, as all agree, are not of faith, since falsehood can lie beneath them from a defect of intention in the one baptizing, ordaining, or consecrating. Nor does the example of the preacher stand in the way: for although the preacher is not of infallible truth in other matters, yet precisely as he preaches here and now you must believe him to be of infallible truth, since you are obliged to assent to his words with divine faith.

**10.** But if we speak of a Pontiff received by the universal Church before he proposes any truth to the faithful to be believed, or before he decrees anything for the universal Church for the right ordering of conduct: some hold that it is not certain of faith that he is true Pontiff, but only certain with a moral certainty far greater than in the aforesaid propositions about the consecrated host and about this man’s being baptized or ordained. For in those propositions there is no exterior effect present which would be a sign of the existence of the body of Christ, or of the grace or character received in baptism and ordination; **but in the case of the Pontiff there is present the consensus of the universal Church, which is an evident sign that he is true Pontiff. Nevertheless, to me it is more probable that even in this state it is of faith that he is true Pontiff** — which is the view of Valentia and Suárez (disp. 10, sect. 5, especially in the reply to the first argument), and it seems to be the opinion of Augustine, Irenaeus (book 3, ch. 3), Basil, Ambrose, Jerome, whom Mancio(?) cites. The sacred Councils favor it: for the Sixth Synod expressly regards Agatho, confessing him true Pontiff; the Council of Chalcedon, Leo; the Council of Milevis, Innocent; and finally in c. de libellis, dist. 20, Silverius, Zosimus, Innocent and others are approved as true and legitimate Pontiffs. But I prove it by arguments. First: **the universal Church receives Urban VIII as true Pontiff; therefore with unshaken faith it must be held that he is true Pope.** I prove the consequence, because this is an evident inference: the universal Church receives this scripture as true; therefore it is of faith that this scripture is true. I see that you can reply that the Church receives this scripture as true in one way, and this man as true Pontiff in another: for it receives the scripture as certain with the infallible certainty of divine faith,

but this Pontiff it receives as certain with moral certainty, because it judges it most probable that in this Pontiff all things necessary for him to be true Pope concur. **But this solution can be overthrown from the Bull of Martin V contained in the Council of Constance, where (col. 14) it is said that of the heretics who desire to be reconciled to the Church it must be required that they believe that the Pope who for the time being exists, having been received by the universal Church, is the true successor of Peter and has supreme power in the Church. Therefore the Church truly proposes, as certain with the certainty of divine faith, that this man is true Pope; otherwise she would not demand that it be believed with divine faith by those who are being reconciled to the Church.** Secondly: the Church — above all as joined to its head — cannot err; but the universal Church together with its head holds Urban VIII to be true Pope; therefore it must be held by divine faith — or else it must be said that the Church together with its head can err by holding for true Pope one who truly is not. The Doctors of the contrary opinion reply that error is twofold, practical and speculative. They call error practical when one errs against prudence, which can in no way happen here, since, all circumstances considered, it is a prudent judgment that this man is legitimate Pope; speculative error is that which judges about a thing otherwise than it is in itself. This latter error, they say, can occur in the assent about this Pontiff — just as in fact it occurred in the assent about the marriages of eunuchs: for a long time the Church judged them capable of marriage, from which speculative error it was purged through Sixtus V by the definition issued on this matter. **But this response is easily repelled: for the universal Church, in the things it proposes concerning the inanimate rule of faith, which is Scripture, can err neither practically nor even speculatively. Therefore neither can it err in accepting the animate rule of faith, which is the Supreme Pontiff; for since the Church is ruled by the Holy Spirit, and since it was said by Christ the Lord, “When he, the Paraclete, shall come, he will teach you all truth,” it will be impious to say that the Church can err speculatively concerning its own head, judging and proposing as its true head one who in reality is not.** Nor does the instance adduced about the eunuchs prove anything: for it is one thing that the Church tolerated and permitted the marriages of eunuchs, another that it positively judged them to be true marriages. The first it did; the second not at all, for the Church had never applied itself to examining this truth about the eunuch’s incapacity for marriage, and so had passed no positive judgment on it. Nor is it any wonder that this truth lay hidden so long, for the Church is compared in sacred Scripture to the dawn (Cant.), which, as Gregory notes (Moral.), from its rising ever grows in brightness unto the perfect day; whence in the Councils we see many truths, which before lay hidden, brought forth anew into the light, whereby the Church’s knowledge and science daily increases and grows. Fourthly: by Catholic faith we believe not only the Church in general, but this Roman Church in particular, which now exists under Urban VIII, to be the true and legitimate Church. Therefore with the same faith we must believe Urban VIII to be true Pontiff. For although this Church is not individuated by this determinate head — since at his death it perseveres numerically the same under the several successors existing for the time — it is nevertheless altogether individuated and specified, insofar as it is the hierarchical Church (even while the See is vacant), by its ordering to a true head. Therefore, when in fact a head is given to it by the consensus of the universal Church, it must necessarily be said that this is a true head, because the head belongs to the constitution of the Church no less than the members — nay, more than they, since it is the more principal part; but the Church cannot consist of members which are not truly members (whatever be said about what the notion of “member” consists in); therefore neither can it stand under a head which is not truly its head. **From all this it is clear that our opinion rests on a twofold most firm foundation: the one drawn from the use of the power of defining, which all Roman Pontiffs enjoy as legitimate successors of Peter; the other from the common and universal acceptance of the Church — for to these two heads all the arguments adduced for our opinion are reduced, and by them the argument of our**



**adversaries stands dissolved. For we say that it is of faith that the Roman Pontiff, by the very fact that he has been received by the universal Church, is true Pontiff — and consequently that it is of faith that he is baptized and fit and capable of the aforesaid dignity — because the Church joined to its head cannot err in this universal acceptance; nor is it to be believed that the divine Spirit would permit this.** As for what is said about the power of defining — that it can be annexed to a Pontiff whether true or merely reputed — we have already rejected it above, as said without foundation and quite contrary to the passages of Scripture.

**11.** For the completion of this question I note that there is a great difference between this proposition, **“It is not of faith that Urban VIII is true Pontiff,”** and that one, **“Urban VIII is not true Pontiff.”** For to affirm this second proposition — namely, “Urban VIII is not true Pontiff” — is a proposition, in the first place, **temerarious**, as asserted without any foundation whatever and repugnant to the common consent of the faithful. It is also **scandalous**, since it gives a handle to schismatics to persevere in their separation from this head of the Roman Church, and to heretics to deride the faithful for venerating as true head what in reality is a feigned head — nay, to Catholics too, not to assent to the things defined by this Pontiff, seeing that he is not true Pontiff; and finally, he who affirms the aforesaid proposition will be **suspect of heresy, and would deserve to be punished as a heretic**, as Bañez well noted (2-2, q. 1, a. 10, dub. 2, §. nihilominus), because he who denies that this man is Pontiff, after the universal acceptance of the Church, seems plainly to deny that there is in the Church the power of electing a true Pontiff and legitimate successor of Peter. Wherefore I think it must be said that it is so certain that Urban VIII (for example) is true Pope, that even if it were not of faith, it would be much more certain than it is that in this consecrated host is the body of Christ; because, morally speaking, a defect could more easily occur in the consecration of a host — through the priest’s forgetfulness or malice, or a defect of intention or of power — than in this, that the universal Church should accept this man for true Pontiff when he is not. **Yet that proposition — namely, that it is of faith that this Pontiff is true Pontiff — is to me most certain; nevertheless I do not dare to brand the contrary with any grave censure, seeing that so many and such grave Doctors have defended it.**

**12.** The third argument adduced in n. 5, by which it was argued that the Pontiff can err in a proposition of faith, was drawn from the diligence and inquiry which the Pontiff seems obliged to make in defining matters of faith. To this argument we answer in two ways. First, by affirming that this diligence is not necessary in order that the Pontiff define with certainty and infallibly, but only necessary that he proceed to the defining prudently and without sin — just as, to grant a dispensation, he must investigate the cause: not because such investigation is necessary for the validity of the dispensation, but because it is necessary for the right and fitting use of that jurisdiction; so in the present case. Hence if the Pontiff in fact proceeded to a definition with the due diligence omitted, it must be said that he would define the truth infallibly — so Valentia; and this seems proved from the promise made to Peter and his successors that his faith should not fail, since such a promise was not limited or conditioned on his applying diligence. But Bañez says: if the whole certainty and infallibility depends on the assistance of the divine Spirit, and if human inquiry and investigation of the truth is not prerequisite for having this assistance, then surely this inquiry is demanded in vain. Nor can the Pontiff be said to proceed temerarily and imprudently when he omits it, since he omits nothing on which the correct and infallible definition depends. Add that in omitting this human diligence he seems to trust more in the divine assistance and to signify to the faithful that the truths of faith are to be investigated not by human ingenuity but by divine instinct. Therefore either it is necessary for defining, or it is in no way required. — But it is easily replied that God commands this human diligence to be applied because he wills that men do what lies in them to investigate the truth; for this seems to pertain to the right government

of the Church: since the Pontiff must propose to the Church not new dogmas of faith, but must bring to light what has already been proposed to the Church though hidden, he must apply diligence proportioned to the subject matter — as St. Peter did when he defined the cessation of circumcision and of the other ceremonies (Acts 15). And when some defect occurs in applying such diligence, notwithstanding it God protects his Church and frees it from error, by preventing the Pontiff from defining, or, if he defines, by making him pronounce the truth. — Secondly one can reply, with Bañez and Valentia above, admitting that this human diligence is necessary [text damaged] in order that the Pontiff define the truth; but we deny that it can be inferred that he might at some time define a falsehood, because [he cannot fail to apply(?) this diligence and inquiry if he is going to define; and so, with the same certainty with which we believe the Pontiff cannot err in a definition of faith, it must be believed that he cannot omit the due diligence for producing the definition, since it is a necessary means to it; for when Christ the Lord promised Peter and his successors the assistance of the divine Spirit for pronouncing the truth, he consequently promised to assist with the means necessary to it — just as if you promised that you would gather much fruit from a vineyard, you would consequently promise the mildness of the weather and the other things from which [the fruits] take their origin. And if you ask what diligence the Pontiff must apply before a definition, I answer briefly, with Valentia, that that diligence must be applied which the subject matter demands. Hence if it concerns a saint to be canonized, or relics(?) to be authenticated, human information and history must be used. But if he is about to determine some dogma as [truly(?) revealed, he must consult those things in which divine revelation is preserved and kept intact. Of this kind are, first, sacred Scripture, as being wholly divine revelation; second, apostolic tradition, which is itself also a certain divine revelation, though not committed to writing; third, the definitions of previous Pontiffs and Councils; fourth, the concordant opinion of the Fathers and Doctors. The manner of investigating all these is not one and the same, but is left to the Pontiff's judgment: he can assemble a Council, or proceed to the definition without assembling one; likewise he can consult the Cardinals, or in their place other learned men and pastors of the Church — all of which is clear from the usage of the Church.

**13.** To the fourth argument, about a Pontiff fallen into heresy, I reply: if his heresy is manifest to the Church, she will easily be freed from him, for then she does not acknowledge him as a shepherd but as a wolf bent on destroying the sheepfold. But if the heresy is not known in the Church, but perhaps is a matter of some controversy, and he, out of malice or ignorance, wished to infect the Church — he could by no means do so, because before he accomplished it God would take him from this life, or would prevent the definition by another way, or finally would bring it about that he pronounce the truth: all of which follow necessarily, in the ordinary course, from the promise made to the Church that the Spirit of truth will never be lacking to her. To the fifth, about the pontifical approbation of the writings of Basil, Chrysostom, Nazianzen, etc., I reply that the Pontiff did not approve all their statements as true and as to be held as true — for they were not canonical writers — but declared that they wrote well, that is, with good intention and zeal; and with such an intention it is perfectly compatible that through ignorance they sometimes failed to attain the truth. To the sixth, I deny that the Pontiff has ever defined a falsehood, or can define one, though he may have held a false opinion — which is gathered not lightly from the extravagant beginning “Benedictus Deus in donis suis,” which Alphonsus de Castro reports verbatim (book 4 Against the heresies, under the word “Beatitudo,” heresy 6, near the end) — nor is it commonly found in the body of the law — where Benedict XI [print; recte XII] indicates that his predecessor John XXII thought that the souls of the saints do not see the divine essence before the day of judgment, but did not propose his own view to the Church to be believed, although he had prepared himself to do so: for before he accomplished it, he died. Nor do the passages there adduced stand in the way. For the first, from c. Quanto, De divortiis,

proves at most that Celestine III thought that marriage is dissolved by heresy, not that he proposed it to the Church to be so believed. In the same way one answers the text in c. Licet, De sponsa duorum: granted that some predecessors of Alexander III privately judged that a ratified marriage is dissolved by a second consummated one, they nevertheless did not determine it so. Add that by the name of “predecessors” not Pontiffs, but other particular Doctors can and should be understood; since in the last chapter of the same title De sponsa duorum, Innocent III declares that the Apostolic See has perpetually taught that a ratified marriage is not dissolved by a second consummated one. Or finally it can be said that Alexander III spoke by way of exaggeration, as Paul spoke to the Galatians (ch. 1) when he said, “Though we, or an angel from heaven, preach a gospel to you besides that which we have preached, let him be anathema” — where the Apostle does not mean that he or an angel would preach the contrary, but that the truth preached must be held so firmly that one ought in no way be turned from it, even if, per impossibile, he himself or an angel from heaven [should preach otherwise]. So Alexander said that a ratified marriage is not dissolved by a second consummated one, although his predecessors(?) had judged the contrary.